

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 73

AFFAIRE BORCHGRAVE

(DÉSISTEMENT)

ORDONNANCE DU 30 AVRIL 1938

1938

ORDER OF APRIL 30th, 1938

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 73

THE BORCHGRAVE CASE

(DISCONTINUANCE)

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF



LEYDEN
A. W. SIJTHOFF'S
PUBLISHING COMPANY

PERMANENT COURT OF INTERNATIONAL JUSTICE

ORDER MADE ON APRIL 30th, 1938.

1938.
April 30th.
General List :
No. 72.

JUDICIAL YEAR 1938.

THE BORCHGRAVE CASE

(DISCONTINUANCE)

Present : M. GUERRERO, *President* ; Sir CECIL HURST, *Vice-President* ; Count ROSTWOROWSKI, MM. FROMAGEOT, DE BUSTAMANTE, ALTAMIRA, URRUTIA, NEGULESCO, Jhr. VAN EYSINGA, MM. CHENG, HUDSON, DE VISSCHER, *Judges*.

The Permanent Court of International Justice,
composed as above,
after deliberation,

having regard to Article 48 of the Statute of the Court,
having regard to Article 68 of the Rules of Court,

Makes the following Order :

Having regard to the Special Agreement signed on February 20th, 1937, between the Belgian Government and the Spanish Government, filed with the Registry of the Court on March 5th, 1937, under which these Governments, a controversy having arisen between them *à propos* the death of Baron Jacques de Borchgrave, and they having reached agreement to submit the dispute to the decision of the Court, requested the Court to say whether, having regard to the circumstances of fact and of law concerning the case, the responsibility of the Spanish Government is involved ;

Having regard to the preliminary objections lodged on June 29th, 1937, by the Spanish Government ;

Having regard to the judgment rendered on November 6th, 1937, upon these objections, and to the order made on the same date whereby the Court fixed the time-limits for the filing of the Spanish Counter-Memorial, the Belgian Reply and the Spanish Rejoinder on the merits ;

Having regard to the order made on December 21st, 1937, whereby the President of the Court extended the time-limit for the filing of the Counter-Memorial until January 4th, 1938 ;

Having regard to the letters filed in the Registry on January 4th, 1938, whereby the Agents of the two Parties requested the Registrar to "inform the Court that the Belgian and Spanish Governments have agreed to discontinue proceedings in the Borchgrave case" ;

Whereas, under Article 68 of the Rules, if the parties inform the Court in writing that they are not going on with the proceedings, it is for the Court to make an order officially recording the discontinuance of the proceedings and prescribing the removal of the case from the list ;

Whereas the President, awaiting the moment when the Court was sitting and was able to take the requisite formal action upon the communications of the Agents of the Belgian and Spanish Governments, suspended the written proceedings in the case by an order made on January 4th, 1938 ;

THE COURT

places on record the discontinuance by the Belgian and Spanish Governments of the proceedings instituted by the Special Agreement filed on March 5th, 1937 ;

and orders that the case shall be removed from the Court's list.

Done at the Peace Palace, The Hague, this thirtieth day of April, one thousand nine hundred and thirty-eight, in three copies, of which one will be filed in the archives of the Court and the others will be transmitted respectively to the Belgian and Spanish Governments.

(Signed) J. G. GUERRERO,
President.

(Signed) J. JORSTAD,
Deputy-Registrar.